Public Comment — FAR Case 2026-010 (Part 36)

Docket FAR-2026-0010 · 91 FR 59534 (September 18, 2026) · RIN 9000-AO83

Submitted by David M. Shelton, Licensed Architect, Osage City, Kansas · Filed as an individual October 12, 2026

To the FAR Council

I recommend one sentence added to FAR 36.101-3, Scope of work, and one supporting entry in the FAR Companion at 36.1. Nothing else.

I am a licensed architect who has structured federal and public capital-project procurement for three decades, including design-build instruction for the U.S. Army Corps of Engineers, the National Guard, and DOE/NREL. I filed comments FAR-2026-0002-0019 and -0021 on acquisition planning and requirement feasibility.

I support this part without reservation. Separating construction from architect-engineer coverage and organizing both around the acquisition lifecycle is a real improvement. Subpart 36.1, Pre-Solicitation, is where a firm fixed price becomes sound or doesn't, and it is the subject of this comment.

1 · The Council has already stated the principle

What a solicitation leaves undefined, an offeror prices as contingency. The preamble says so twice.

On the preconstruction conference, the Council moves the requirement into the solicitation because doing so gives industry the clarity needed to estimate costs accurately, so the Government pays only for defined requirements rather than anticipatory contingencies. On Physical Data, it reasons that the data provided to bidders should already be in the solicitation.

The retained text says the same. Under 36.101-1(b)(2)(ii), lump-sum pricing yields when quantities cannot be estimated without a substantial contingency. Under 36.101-1(b)(3), economic price adjustment is allowed where its absence would produce unwarranted contingencies.

I agree with all of it. This comment carries the same principle one step further: from the conference and the site data to the requirement itself.

2 · The gap: the requirement and the estimate are read by one party

Two documents in Subpart 36.1 decide whether a firm fixed price is sound: the scope of work (36.101-3) and the independent Government estimate (36.101-6). The Government writes both, holds both, and judges both.

- **The scope of work** must define the project and give offerors sufficient information. Whether it is sufficient is decided by the party who wrote it. A requirement can read clearly to its author and two ways to everyone else.
- **The two-phase test** at 36.101-2(a)(3)(i) asks the contracting officer to consider whether requirements are adequately defined. That is the right question, answered by the only party who cannot see the ambiguity.
- **The IGE** reaches the contracting officer before proposals, based on a detailed analysis of the requirements. No one outside the Government tests it until proposals arrive. By then an unreachable scope can only be cut, re-solicited, or paid for.

The Phase 1 deviation removed the magnitude disclosure at former 36.204, which in any case barred disclosing the estimate. With fixed price now the default, the Government fixes a price against a requirement that no offeror has confirmed it can read or reach.

The result is what the preamble predicts: the ambiguity is priced as contingency, or it returns after award as a request for equitable adjustment, priced by a party no longer facing competition.

3 · The recommendation

Regulation: add one paragraph to 36.101-3(a). The new text is in bold.

> (a) A scope of work must be included in the solicitation, and must:
>
> (1) Define the project;
>
> (2) Provide prospective offerors with sufficient information regarding the Government's requirements; and
>
> **(3) State each required result so that the Government and an offeror would read it the same way, including the procedure, conditions, and threshold by which it will be verified.**

This is a guardrail, not a process. It names what "define the project" already requires and adds no step, report, or approval.

FAR Companion at 36.1: three practices, consistent with the Council's view that "how to" belongs in guidance.

1 **Rank the scope against the budget.** Where 36.101-3(b) budget parameters are stated as a fixed amount, rank required results in the Government's order of priority: required, then desired, then if possible. The required tier is the responsiveness floor. The order is the relative importance of each factor, declared before proposals are received.

2 **Read the draft with the market before competition opens.** Under the engagement authority now at 7.105, give the draft scope and budget to prospective offerors and ask each, separately, one question: Is the requirement clear, and if so, can the required results be achieved at the *stated amount and schedule?* A "no" must cost the respondent nothing in the later competition. That is what makes a "yes" evidence.

3 **Repair, then issue.** A line two respondents read differently is a defect, fixed by the Government before issuance at no cost. A required tier the market says cannot be reached at the amount is a report on the budget, returned to the program before the solicitation issues rather than discovered after award.

4 · Why this serves the rule's three goals

Lower cost. Contingency for an unreadable line is paid on every offer. A line repaired before issuance is paid for by no one.

Timeliness. A pre-issuance reading costs one revision cycle. The same error found after award costs the schedule spent negotiating it, and that schedule cannot be recovered.

Competition. With the price fixed and identical across offers, price no longer separates offerors. What remains is how far up the Government's ranked list each offeror can reach. Best value becomes the most ranked scope proposed for the fixed price, read against an order published before anyone

proposed. That rewards offerors who exceed the baseline, which neither lowest-price-technically-acceptable nor an after-the-fact tradeoff can do.

It has been done. DOE procured the Research Support Facility at NREL this way: a fixed price set before the performance goals, scope ranked in three tiers (mission critical, highly desirable, if possible), and a draft RFP given to the final competitors before competition. DOE's account states that firm fixed price was workable because the contractors knew exactly what was wanted. See *The* Design-Build Process for the Research Support Facility (https://docs.nrel.gov/docs/fy12osti/51387.pdf) and National Research Council, *Achieving* High-Performance Federal Facilities (2011), Appendix G (https://www.nationalacademies.org/read/13140/chapter/16).

5 · Closing

The Council has already decided that clarity belongs in the solicitation, before commitment, in the Government's own domain. This recommendation applies that decision to the requirement itself and lets the market confirm it before the price is fixed.

On the record. My earlier comments in Docket FAR-2026-0002 described the underlying conditions in five and later thirteen parts. The attached paper (v1.0, August 26, 2026) restates them as three laws and six elements and supersedes both descriptions. The principles are offered freely. I retain the 3PQ name and my training materials, which are one method built on them.

A crosswalk of the six elements to Part 36 is available to Council staff on request.

Thank you for the opportunity to comment.

Respectfully submitted,

David M. Shelton · Licensed Architect · Osage City, Kansas · Filed as an individual

Attachment: *Promise-Physics: A diagnostic for capital asset acquisition*, v1.0 (FAR Case *2026-010)*